

Privacy Notice for complainants

The Local Government and Social Care Ombudsman is set up by law to look at complaints about councils and some other public organisations in England and complaints about adult social care providers in England whether publicly or privately arranged and funded. We process personal information to enable us to carry out our statutory duties. These include considering and investigating complaints, providing advice and information and undertaking service-user research.

We collect information when you contact us for advice, bring a complaint to us or complain about our service. Contact is made either through our online complaint service on our website or other means such as post and telephone.

We will process the information in accordance with the UK General Data Protection Regulation 2016 (UK GDPR) and the Data Protection Act 2018 (DPA18).

Information we collect from you – what we need and why

We need information from you to investigate your complaint properly, so our online complaint forms are designed to prompt you to give us the information we need to understand what happened. We will let you know if we need more information from you as your complaint progresses.

When we receive a complaint from you, we set up a case file. This normally includes your contact details and any other information you have given us about the other parties in your complaint.

We need to know the details of your complaint so we can investigate it and fulfil our statutory function.

We process information that is relevant to the investigation of complaints we receive. This could include:

- personal and family details
- financial details
- details of complaints, incidents and grievances
- visual images
- sound recordings

We also process special categories of personal data. This may include information about your:

- physical or mental health
- adult social care
- sex life or sexual orientation
- racial or ethnic origins
- religious or philosophical belief

Why we process personal data – purpose and lawful processing basis

We will use your personal information to consider and investigate your complaint.

We may also invite you to share your experiences of our service with us by asking you to complete our customer satisfaction survey. We may also invite you to participate in user research.

We compile and publish statistics showing information like the number of complaints we receive, but not in a form that identifies anyone.

We will normally publish our decision on your complaint on our website. This will be anonymised. We may decide not to publish our decision, for example if it cannot be made anonymous. We will tell you about this.

The lawful basis we rely on to process your personal data is article 6(1)(e) of the UK GDPR, which allows us to process personal data when this is necessary to perform our public tasks as an Ombudsman scheme.

To investigate your complaint, we may also process special category data, such as health, religious or ethnic information. The lawful basis we rely on to process it is article 9(2)(g) of the UK GDPR, which also relates to our public task and the safeguarding of your fundamental rights, and Schedule 1 part 2(6) of the DPA18 which relates to statutory and government purposes. To meet our legal duties under the Equality Act (2010) we will make reasonable service adjustments to enable you to access our service. The lawful basis we rely on to process this information is article 6(1)(c) of the UK GDPR.

Sharing your information

We may need to share some of the information you give us with other people. For example, in nearly all cases, we will share the information you give us with the organisation you have complained about, so they can respond to our enquiries. We will do this even if you have yet to complete the complaint process with that organisation. Where you have complained about a specific employee of the organisation concerned, we may share information you have provided with that employee.

The types of other people and organisations we share data with include: a person who is representing you, professional advisers, advocates and other ombudsman or regulatory authorities, see also section below on **Joint investigations**. We will usually tell you when we share your data, and who with.

If you are acting on behalf of someone making a complaint, we will ask for information to satisfy us you are a suitable representative and you have authority to act on their behalf.

We use Maglabs as a data processor to run our Online Complaint Service accounts.

Information we collect from other sources

To process your complaint, we will often obtain information about you and your complaint from other sources. In many cases this will be from the organisation you are complaining about, and, in some cases, we will need information from third parties such as legal or other expert advisers. Some of this information may be special categories of personal data.

How we protect the information

We take the security of your data seriously. We have internal policies and controls in place to ensure your data is not lost, accidentally destroyed, misused or disclosed. We also make sure our employees only access your data in the proper performance of their duties.

For more details see our information management policies on the website.

<https://www.lgo.org.uk/information-centre/internal-policies/health-safety-info-mgt>

How we store and how long we keep the information

More detailed information about what casework material we keep, and for how long, is in our Retention and Disposal of Casework Records Policy on our website.

[Health and safety, and Information management - Local Government and Social Care Ombudsman](#)

We scan all paper documents when we receive them and add them to your case file. We will generally destroy the paper copies after 12 weeks, unless you tell us you want your documents returned.

If your enquiry is about a body we cannot investigate, meaning we do not carry out an investigation, we will keep your personal details for three months. We will then delete your personal data from the case file and keep the rest of it for 10 years for statistical purposes.

We normally destroy most of the casework records 12 months after the last substantive action on the case. This includes all the information you have sent and we have obtained from other sources, such as the council. In exceptional circumstances, we may need to keep casework records longer, for example, if our decision is subject to legal action; we will generally tell you if so. You can find information about the situations in which we keep material longer than 12 months in our Retention and Disposal of Casework Records policy on our [website](#).

We keep a record of the complaint and details of our decision, including the decision statement or report, on your case file for 5 years as this helps if you complain to us again. When we publish a report on our website we keep it on there for 10 years. Decision statements are usually published on our website and kept there for 5 years. Neither reports nor statements will contain your name or any other information that would identify you.

Statements of conclusions with recommendations (decision statements about privately arranged care) are treated in the same way as other decision statements and published on our website for 5 years.

We record telephone calls for training and monitoring purposes. We may record video calls for the same reason. We keep most recordings for 30 days. In some cases, for example where it is the subject of a service complaint, we may keep a recording for longer than this. If we put a copy of a recording on your case file we will delete it along with all other casework in line with our casework retention [policy](#).

Online Complaint Service

All forms and attachments are retained by our online complaint service provider (Maglabs) for a period of four weeks to allow for queries about forms that have not got through to us. After four weeks, these files are deleted. Incomplete complaint forms will be retained by our provider for 12 months.

To submit a complaint form online, or use the online complaint service for any other purpose, users must create an account with an email and password. Account details are stored by our provider and are deleted 5 years from last log in.

Information rights requests

If you make a right of access request, commonly known as making a subject access request, or a request for another right under the UK GDPR, your request and our response will be held on your case file. The information will be deleted in accordance with the Retention and Disposal of Casework Records policy. If the casework records have been deleted from your case file then your request, our response and any documents created for the

purpose of responding to your request will be kept for 4 months after our response to you. We will keep it longer if you tell us you have appealed to the Information Commissioner's Office.

Unacceptable complainant behaviour – restricting contact

In most cases, people who complain to us are reasonable and allow us time to do our job. However, some people behave in a way which affects our ability to deal with their or other people's complaints. If this happens, we may need to manage the way that person can contact us.

In extreme cases, we record this on the case file for people who we consider present a possible threat to the safety or wellbeing of our staff. We will normally tell the person when their details are recorded in this way, unless we believe this may provoke unacceptable behaviour towards our staff. We regularly review information recorded in this way and delete it when it is no longer relevant.

We have a duty of care to act where we have concerns there may be a threat to someone's welfare. We may choose to contact an appropriate authority such as the council or police to make them aware of our concerns. If our concerns relate to your welfare, we will try and notify you of our actions.

Joint investigations

We carry out some joint investigations with the Parliamentary and Health Service Ombudsman (PHSO) where a complaint covers both health and social care services. Where we think your complaint is best dealt with jointly, we will ask for your consent before we start considering it. By agreeing to a joint investigation, you are also consenting to us sharing the information required to do so. If you do not give us consent, then we will not be able to undertake a joint investigation.

For specific details on joint investigations please visit

<https://www.lgo.org.uk/information-centre/about-us/others-we-work-with>

We also work with the Housing Ombudsman Service as there is scope for carrying out joint investigations, and we each deal with different aspects of complaints about housing. We will ask for your consent before starting a joint investigation. See the Memorandum of Understanding we have with the Housing Ombudsman Service at:

<https://www.lgo.org.uk/information-centre/about-us/others-we-work-with>

We share information with the Care Quality Commission (CQC) – the independent health and social care regulator in England. The two organisations work together to promote high quality services for all people who use adult social care services. See the Memorandum of Understanding we have with CQC at:

<https://www.lgo.org.uk/information-centre/about-us/others-we-work-with>

We share information with the Office for Standards in Education, Children's Services and Skills (Ofsted) – the independent regulator of educational institutions in England. See the Information Sharing Protocol we have with Ofsted at:

<https://www.lgo.org.uk/information-centre/about-us/others-we-work-with>

We are signatories to the Emerging Concerns Protocol. This means we might share, or be asked to share, information with other health and social care regulators where it appears there is a risk to people who use a service. It is unlikely we would share personal information through this protocol, but we will ask for your consent if we think it is necessary to share your personal information. A full copy of the Emerging Concern Protocol is available on the Care Quality Commission's website.

Feedback surveys

We may contact you to take part in a customer satisfaction survey. Please see the separate privacy notice about this on our [website](#).

- We usually contact complainants six weeks after they have had the decision on their complaint to ask them to take part in our feedback survey.
- If a complainant has provided an email address we will email them with a link to the survey. If not, we will send the survey by post.
- Complainants do not have to take part in the survey.
- Responses are not seen by the original case officer. A separate team will analyse them to see how we can improve our service. We present a summary of the results in a quarterly report.

Reasonable Service Adjustments

As a public authority and a provider of services to the public, we have a legal duty to comply with the Equality Act (2010).

This means we need to make reasonable service adjustments for anyone with a disability who contacts us in any capacity, to eliminate any barriers to accessing our services. Our lawful basis for processing this information is article 6(1)(c) of the UK GDPR as we have a legal obligation to provide this. Our processing of special category data, such as health information you give us, will be based on article 9(2)(a), which means we need your consent.

We will create a record of your requested reasonable adjustments. These will give your name and type of adjustment required, along with a brief description of why it is required. It will also record our decision about whether and how to make reasonable adjustments. Relevant staff can access this to ensure they are communicating with you in the required way.

Your rights

Access to your data

You have the right to ask us for copies of your personal information. This right always applies. There are some exemptions, which means you may not always receive all the information we process.

If your request is for information from another organisation, for example the organisation you have complained about, we may seek its view on disclosure of the information.

For more information on how to do this, see our Access to Information Policy [here](#).

The right to rectification

You have the right to ask us to rectify information you think is inaccurate. You also have the right to ask us to complete information you think is incomplete. Please remember just because you disagree with our decision on your complaint or the information we have obtained from another source, it does not necessarily mean it is not accurate.

The right to object

You can object to our processing of your personal data, and we must comply with your objection unless we can demonstrate our grounds for processing override your interests, rights and freedoms. Your grounds for objection must be related to your situation. However, if we comply with your objection, we will not be able to continue investigating your complaint and we would end our involvement.

The right to restrict processing

You have the right to ask us to restrict the processing of your information in certain circumstances.

We will restrict processing of your data if:

- you tell us the data we hold is not accurate, while we verify the accuracy
- you object to our processing, while we consider if our legitimate grounds for processing override your right to object
- we no longer need the data but you need it to establish, exercise or defend a legal claim.

The right to erasure ('right to be forgotten')

The right to erasure or 'the right to be forgotten' does not apply when information is being processed for the performance of a public interest task or exercise of official

authority. This is the basis on which we process complaints data, and so this right does not apply.

The right to data portability

The right to data portability only applies to data that is processed by automated means, and where processing is based on your consent or the performance of a contract. As processing complaints data is for the performance of a public interest task or exercise of official authority, this right does not apply.

Timescales

We have one month to respond to you. Please contact us at foi.officer@lgo.org.uk if you wish to make a request.

Contact details

If you have any queries about the information given here, how we handle personal data, or to request a copy of any of the documents mentioned above, please contact the:

Data Protection Officer
Local Government and
Social Care Ombudsman
PO Box 4771
Coventry
CV4 0EH

Email dataprotection@lgo.org.uk

The person who is ultimately responsible for the control of your data is the Senior Information Risk Officer. The data controller is the Commission for Local Administration in England (the formal name of the Local Government and Social Care Ombudsman).

Complaints

If you have a complaint about how we have handled your data, you can complain to the Information Commissioner's Office (ICO).

Contact details and information about how to complain can be found on their website:

[Information Commissioner's Office \(ICO\)](#)

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